



IN THE HIGH COURT OF KARNATAKA, AT DHARWAD

DATED THIS THE 6TH DAY OF NOVEMBER, 2025

**BEFORE
THE HON'BLE MR. JUSTICE ANANT RAMANATH HEGDE**

WRIT PETITION NO.146529 OF 2020 (L-ID)

BETWEEN:

THE DIVISIONAL CONTROLLER, NWKRTC
HUBBALLI DIVISION, HUBBALLI,
THE PETITIONER IS R/BY
ITS CHIEF LAW OFFICER,
NWKRTC CENTRAL OFFICE, HUBBALLI.

... PETITIONER

(BY SRI. PRASHANT S. HOSMANI, ADVOCATE)

AND:

SHEKARGOUDA
S/O VIRAPPANAGOUDA PIDDANAGOUDAR,
AGED ABOUT 64 YEARS, OCC. NIL,
R/O. H.NO.653/8, PANCHALSHARI NAGAR,
NAVANAGAR, HUBBALLI,
DIST. DHARWAD-580 002.

... RESPONDENT

(BY SRI. SHASHWATH S. HIEMATH, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLE 226 OF THE CONSTITUTION OF INDIA, PRAYING TO ISSUE A WRIT IN THE NATURE OF CERTIORARI THERE BY QUASHING THE AWARD DATED 03.04.2019 PASSED BY THE PRESIDING OFFICER LABOUR COURT AT HUBBALLI IN KID NO.37/2017 AND CONSEQUENTLY TO DISMISS THE KID NO.37/2017 FILED BY THE RESPONDENT ON THE FILE OF LABOUR COURT HUBBALLI



THE COPY OF THE SAME IS AT ANNEXURE-D TO THE WRIT PETITION IN THE INTEREST OF JUSTICE AND EQUITY.

THIS PETITION COMING ON FOR ORDERS, THIS DAY, ORDER WAS MADE THEREIN AS UNDER:

ORAL ORDER

(PER: THE HON'BLE MR. JUSTICE ANANT RAMANATH HEGDE)

This writ petition is filed assailing the award dated 03.04.2019 passed by the Labour Court, Hubballi.

2. In terms of the award, the Reference is allowed and penalty of dismissal from service is set-aside. The Labour Court directed the employer to pay 50% of the monetary benefits from date of dismissal, till date of superannuation.

3. Certain facts are not in dispute.

4. The respondent- employee was a conductor under the petitioner- North Western Karnataka Road Transport Corporation (for short 'NWKRTC'). The charge memo was issued against the respondent on the premise that on 22.06.2011, while the respondent was on duty in a



bus on CBT-Anandnagar-CBT route, the Inspectors intercepted the bus and found that there were 100 passengers in the bus and 9 passengers were without tickets.

5. The Domestic Enquiry was conducted and respondent was found guilty; and consequently, was dismissed from service.

6. The order of dismissal was called in question before the Labour Court. The Labour Court found that enquiry was not fair and proper and thereafter, permitted the parties to lead evidence on their respective claims. The parties led evidence. The Court found that the charges are not proved and accordingly, set-aside the order of dismissal.

7. Learned counsel appearing for the petitioner-employer would submit that the Labour Court has set-aside the order of dismissal on three grounds;



- a) The Electronic Ticket Machine was not produced;*
- b) The passengers who are travelling without tickets, were not examined;*
- c) The witnesses examined on behalf of the Corporation admitted that to reach the target, the Officers often conduct the raid.*

8. Learned counsel for the petitioner would submit that, on 106 occasions earlier, the respondent was found guilty of misconduct of not issuing the tickets; he has accepted the charges and paid the fine on 106 occasions. Three reasons assigned by the Labour Court referred to above to disbelieve the finding of the Disciplinary Authority is unsustainable.

9. It is urged on behalf of the petitioner that there is no need to produce the Electronic Ticket Machine as the status report generated from the said machine was produced. In addition to that, the fine imposed on the 9



passengers is established by producing the fine receipt and there is no need to examine the passengers.

10. It is also urged on behalf of the petitioner that merely because the witness examined on behalf of the Corporation makes a statement that many a times they conduct the raid to reach the target fixed by the Corporation, that does not mean that every raid and every charge of misconduct alleged is incorrect.

11. Learned counsel for the respondent – workman would submit that at stage No.5, the Officers boarded the bus and it is found that there were no ticketless passengers at that stage and later, the Officers claimed that 9 passengers were ticketless at Stage No.8. Thus, it is urged on behalf of the respondent that between Stage Nos.5 and 8, few passengers have boarded the bus and before tickets were issued, this false allegation is made against the conductor.



12. It is his further submission that the Tribunal has rightly held that the Domestic Enquiry was not fair and proper and when the evidence was led before the Court, the Tribunal has come to the conclusion that the order of penalty of dismissal from service is unsustainable. Thus, on behalf of respondent it is urged that the petition be dismissed.

13. Learned counsel appearing for the Workman would urge that the status report is not established. The receipts collected from the passenger for having paid the fine, does not bear the names and addresses of the alleged 9 passengers and status report from Stage 5 to Stage 7 is not submitted though it is alleged that the Inspector intercepted the bus at Stage 5. It is noticed from the records that the MW2 states that they boarded the bus at Stage 6 and report is generated at Stage 8.

14. The Court has considered the contentions raised at the Bar and perused the records.



15. It is not in dispute that the interception took place on the given date. It is established that 9 passengers were found ticketless and the receipt for having collected the fine from those 9 passengers, who were ticketless, is produced at Ex.M2. The inference coming from Ex.M2 is not rebutted. The Labour Court did not place reliance on Ex.M2 on the premise that all passengers on whom the fine is imposed are not named and signed Ex.M2 and that passenger is not examined to prove Ex.M2.

16. The law does not mandate the examination of those 9 passengers to establish Ex.M2 unless it is disputed by the respondent. On perusal of cross-examination, it is noticed that the respondent is contending that Ex.M2 does not bear the names of 9 passengers and signature of 9 passengers. What is noticed from Ex.M2 is that fine is imposed on 9 passengers and for having issued the receipt one person has signed. Since fine amount is reflected in respect of 9 passengers in Ex.M2, this Court is of the view that Ex.M2 stands established. In addition to that the



inference coming from Ex.M2 is also established from the status report generated from electronic ticket machine.

17. The observation of the Labour Court that Electronic Ticket Machine was not produced at the time of enquiry, and as such the allegation is not established is an erroneous approach. Even in the absence of Electronic Ticket Machine, the charges can be established. The petitioner- Corporation has produced the status report to hold that there were 9 ticketless passengers when the interception took place.

18. In addition to that, merely because one of the witnesses would say in his cross-examination that many a times they intercept just to meet the target, does not mean that every case filed by the Ticket Inspectors is a false case.

19. As already noticed from the cross-examination that the authenticity of Ex.M4, is not disputed. What is suggested is that the electronic ticket machine is not produced. Ex.M4- the status report would reveal that as to



how many tickets were issued and there is no dispute that 100 passengers were travelling on that day when the interception took place and ETM and M4 would reveal that only 71 tickets were issued.

20. The Labour Court erred in holding that Ex.M6 is handwritten and it is tampered. Ex.M6 is the offence memo. There is no mandate that it is to be typed or printed. It is generated at the place of interception. Hence, it cannot be expected to be typewritten.

21. In addition to that, it is also an admitted fact that on 106 occasions earlier, the petitioner was found guilty of certain misconduct and workman has paid the fine.

22. On going through the evidence, it is noticed that the status report is not disputed and it refers to 71 passengers were issued tickets. It is not the case of the workman that there were not 100 passengers on board when the interception took place. The management has taken a stand that out of 100 passengers, 2 passengers



were minors, 15 passengers had a pass, 71 passengers were issued ticket and remaining 9 passengers had no tickets; and the penalty is imposed on the ticketless passengers and one among them has signed the receipt. Merely because other passengers have not signed the receipts, does not mean that the penalty is not calculated.

23. It is not the case of the Workman that the passengers boarded the bus at Stage 8 and when he was in the process of issuing the ticket, the interception took place. It is not the case of the Workman that 100 passengers were not there when the interception took place and it is not his case that some passengers boarded the bus at stage 5, 6 and 7 and workman was still in the process of issuing the ticket.

24. Under these circumstances, this Court is of the view that the Labour Court could not have held that the status report is tampered. There is no such tampering in the status report. Said finding is completely untenable and



there are no materials to support such finding. As already noticed, merely because offence memo is handwritten, the Labour Court could not have disbelieved it.

25. The Court is of the view that the vital evidence has been ignored by the Labour Court and has erroneously come to the conclusion that charges are not proved. The requirement of law in domestic enquiries is based on preponderance of probability. There is no requirement that the proof has to be beyond reasonable doubt.

26. Hence, following:

ORDER

- (i) Writ Petition is **allowed**.
- (ii) Impugned award dated 03.04.2019 passed in KID No.37/2017 by the Labour Court, Hubballi is set-aside.
- (iii) The reference sought by the respondent is rejected.



**NC: 2025:KHC-D:15234
WP No. 146529 of 2020**

(iv) No order as to cost.

**Sd/-
(ANANT RAMANATH HEGDE)
JUDGE**

AM
CT:BCK
LIST NO.: 1 SL NO.: 45.1